

**DISPOSITION OF CHARGES**

PD 468-142A (Rev. 1-06)

CASE NO.
2021-23571
BOOK & PAGE NO.
Page 1 of 1
PERSONNEL ORDER NO.

SPECIFICATIONS AGAINST RANK/SURNAME	FIRST	M.I.	COMMAND
Lieutenant Butler,	Michael		Chief of Department
SHIELD NO.	TAX REGISTRY NO.	DATE APPOINTED	
00000	948725	July 6, 2010	
RANK/NAME OF COMPLAINANT			COMMAND
Deputy Chief Prosecutor Suzanne D. O'Hare			CCRB - Administrative Prosecution Unit
DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED	
November 4, 2022	November 4, 2022	November 4, 2022	

TRIAL COMMISSIONER

Honorable Rosemarie Maldonado

SPECIFICATIONS	DISPOSITION	RECOMMENDED PENALTY	
		PLEA ☐	TRIAL ☒
1. Lieutenant Michael Butler, on or about May 30, 2020, at approximately 1732 hours, while assigned to CD OFF and on duty, in the vicinity of Bedford Avenue and Tilden Avenue, Kings County, wrongfully used force, in that he pushed an unknown individual without police necessity. (As amended)	NOT GUILTY	It is recommended that Respondent be found Not Guilty.	
2. Lieutenant Michael Butler, on or about May 30, 2020, at approximately 2030 hours, while assigned to CD OFF and on duty, in the vicinity of Bedford Avenue and Tilden Avenue, Kings County, wrongfully used force, in that he pulled an individual down to the ground without police necessity.	NOT GUILTY		

Reviewed by Deputy Commissioner of Trials

Rosemarie Maldonado ⁶⁴⁵²⁴
DEPUTY COMMISSIONER

12-7-22
DATE

Police Commissioner's Approval:

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Giall
POLICE COMMISSIONER

12/3/23
DATE



POLICE DEPARTMENT

December 7, 2022

-----X
In the Matter of the Charges and Specifications :

- against - :

Lieutenant Michael Butler :

Tax Registry No. 948725 :

Chief of Department :

Case No.

2021-23571

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Rosemarie Maldonado
Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Brian Arthur, Esq.
Civilian Complaint Review Board
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For the Respondent: James Moschella, Esq.
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To:

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CHARGES AND SPECIFICATIONS

1. Lieutenant Michael Butler, on or about May 30, 2020, at approximately 1732 hours, while assigned to CD OFF and on duty, in the vicinity of Bedford Avenue and Tilden Avenue, Kings County, wrongfully used force, in that he pushed an unknown individual without police necessity. *(As amended)*

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

2. Lieutenant Michael Butler, on or about May 30, 2020, at approximately 2030 hours, while assigned to CD OFF and on duty, in the vicinity of Bedford Avenue and Tilden Avenue, Kings County, wrongfully used force, in that he pulled an individual down to the ground without police necessity.

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on November 4, 2022. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The identities of Individuals A and B are unknown to the CCRB; therefore, they were not called to testify at trial. Instead, CCRB relied on video recordings of the incidents: the first is a cell phone recording taken at street level, which was posted on a Twitter account (CCRB Ex. 1); the second is also a cell phone recording taken at street level posted on a different Twitter account. (CCRB Ex. 4) Respondent called Deputy Chief Charles McEvoy and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty of the charged misconduct.

ANALYSIS

It is undisputed that from late May to early June 2020, New York City was in the midst of the George Floyd protests. In this case, the CCRB alleges that, during those protests,

Respondent used force against two unknown individuals without police necessity. At trial, Respondent readily admitted that he pushed Individual A and that he brought Individual B to the ground. Accordingly, the sole issue before this tribunal is whether the force used was reasonable under these circumstances. For the reasons set forth below, I find that it was.

The Patrol Guide sets forth the parameters for determining whether the use of force is authorized. P.G. 221-01 and 221-02 state that force may be used to ensure the safety of the MOS or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape. The force used must be "only the reasonable force necessary" under the circumstances.

Legal precedent establishes that the reasonableness of an officer's actions must be judged "from the perspective of a reasonable officer on the scene, rather than with the 20/20 vision of hindsight." *Koeiman v. City of New York*, 36 A.D.3d 451 (1st Dept. 2007), citing *Passino v. State*, 260 A.D.2d 915 (3d Dept. 1999). Furthermore, the "calculus of reasonableness must embody allowance for the fact that police officers are often forced to make split-second judgments -- in circumstances that are tense, uncertain, and rapidly evolving -- about the amount of force that is necessary in a particular situation." *Graham v. Connor*, 490 U.S. 386, 396- 97 (1989).

Specification 1: Pushed an unknown individual

It is uncontested that from May 29 to May 30, 2020, Respondent was assigned to the Chief of the Department's Office, under the direction of Chief Charles McEvoy. On the morning of May 30, 2020, he responded to Parkside Avenue along Prospect Park in Brooklyn because the Department had intelligence that there was going to be a large demonstration at that location.

Respondent estimated that he observed over a thousand people in the Park. Participants chanted and then began to march as officers monitored and walked alongside. (Tr. 56-58)

At one point, a group splintered off and started marching towards the 67 Precinct.

Respondent headed toward that Precinct after reports that the group had become violent.

However, they changed their trajectory when a 10-13 "all-hands" came over the radio requesting urgent assistance. Respondent described the call as follows:

In my 12 years on this job, I never heard a transmission of that severity. I have worked with police officers shot in the line of duty. I've responded to large scale murders, never once have I never heard screaming like that over a radio. At that point, you know, we knew we had to respond (Tr. 61)

Respondent testified that the distress call came from the Commanding Officer of the 71 Precinct, Inspector Romero. During the last transmission Respondent heard, the Inspector yell, "This might be my last transmission." Chief Charles McEvoy confirmed the particulars of this urgent call. Respondent immediately began running towards Bedford and Tilden Avenues, convinced that the Inspector's life was in danger. (Tr. 37, 59-62, 68, 80)

Respondent testified that at the scene, he observed over a thousand individuals spilling out onto the streets. He was unable to locate the Inspector to ascertain his safety so the officers started to make their way through the crowd. As the officers gave orders for participants to disperse, most moved out of the way. Respondent testified that, "the last line...decided to lock arms and tell me that I'm not getting through." Respondent shoved Individual A out of the way, allowing other officers to continue through to locate Inspector Romero. Individual A was arrested for obstructing governmental administration. (Tr. 43, 63-64, 67)

Respondent's credible and uncontested account was corroborated by the video recording admitted into evidence as CCRB Ex. 1. The short video captured Respondent wearing a blue shirt as he moved through the crowd with several other high-ranking officers. Respondent is first

seen with a radio to his ear, before he starts to rush with a sense of urgency. Most of the crowd disperses before they reach a line of protestors with their arms locked, forming a human chain next to a marked police car. The second person in the chain is Individual A. He is wearing a black t-shirt and a grey backpack and is seen locking arms with another person who is wearing a patterned sweater and a helmet. Respondent attempts to gain access through the chain by shoving Individual A. Another officer is seen running passed the crowd at a sprint, as Individual A is handcuffed. (CCRB Ex. 1)

The evidence presented at trial failed to establish that, under these particular circumstances, the force used constituted sanctionable misconduct. The short video clip posted on Twitter that CCRB relied upon tells part of the story. However, the clip by itself, capturing just 45 seconds in isolation, is devoid of the context needed to appropriately and fully assess officer conduct. Unfortunately, Individual A was never identified; thus neither the CCRB nor this tribunal had an opportunity to hear his version of events. Had Individual A provided a statement, it may have contained important information that could have impacted the required legal analysis. Nevertheless, in this case, the video supports key aspects of Respondent's account and, in the absence of any opposing evidence, buttresses rather than undercuts his position.

More importantly, this tribunal found Respondent to be a straightforward and credible witness. Respondent's account expressing his earnest concern for the safety of a fellow officer confronting a dire situation was corroborated by the testimony of Chief McEvoy, as well as the actual recording of Inspector Romero's urgent call requesting the "10-13," where dozens of officers were redeployed to assist. (CCRB Ex. 2) This tribunal also credited Respondent's uncontested account that, while others followed their orders and allowed him to pass, Individual A responded by yelling that the officers would not get through and locking arms with others to

physically stop them. In fact, the video footage shows much of the crowd allowing the officers to go through. Using a push, which was limited in scope and duration, to break a human chain purposely formed to stop them, was reasonable force given their real fear that another officer was in danger. Accordingly, I find Respondent Not Guilty of the misconduct alleged in Specification 1.

Specification 2: Pulled an individual down to the ground

It is uncontested that Respondent remained in the area of Bedford and Tilden Avenues throughout the rest of that day and assisted in multiple arrests. He recounted that on May 30, segments of the crowd became increasingly violent and engaged in criminal activity such as setting police vehicles on fire and overtaking MTA buses. Others threw bricks and bottles at officers, while others punched or hit them with other objects. At one point, Respondent witnessed Chief McEvoy being hit with a brick, which caused him to lose feeling in his arm. (Tr. 48-49, 72-73)

Respondent credibly testified that unidentified Individual B struck a Police Chief with his fist. Thereafter, in the midst of a large scale disturbance with numerous officers simultaneously struggling with the crowd, several officers attempted to arrest Individual B for assaulting a police officer. Respondent testified that Individual B was noncompliant and refused to be handcuffed. The arresting officers moved with Individual B approximately 30 feet from scene of the assault, but Individual B continued to flail his arms as the officers unsuccessfully tried to gain control. Based on his observations, Respondent made a determination that to safely handcuff Individual B, he had to be brought to the ground. Respondent convincingly stated that he assisted in the arrest by grabbing Individual B's backpack with one hand and pushing down on his torso with the other. Once on the ground, Individual B was handcuffed. (Tr. 74-77)

CCRB relied primarily on a short video clip posted on Twitter to prove its case. The video captures a number of officers in riot gear as the crowd gathers on the street and surrounding areas. At 0:06 seconds, an officer is seen laying on the ground. At 0:13 seconds, a group of two officers and a supervisor in riot gear approach from the right side of the screen, holding an individual in a grey shirt and face mask, later identified as Individual B. The officers are seen struggling for over five seconds as they attempt to control him. Individual B is not handcuffed as they walk through the unpredictable crowd. He is swinging his arms and pulling his body away from the officers. The video captures Respondent as he steps up from behind, grabs the low hanging backpack with one hand, places his other arm across Individual B's shoulders, and pulls him to the ground where he is handcuffed. It is only then that the officers were able to gain control of Individual B. (CCRB Ex. 4 at 0:14-0:19)

Under these specific circumstances, the tribunal finds that Respondent's actions were objectively reasonable. As noted above, viewing an isolated moment on video does not always provide the context required by applicable legal standards; particularly when the subject does not provide a statement. Here, the record contains Respondent's sworn testimony explaining what motivated his intervention in this particular arrest. Respondent credibly testified that Individual B was not handcuffed as the officers tried to control him in the midst of a chaotic and hostile situation. As noted by Respondent, not only are his arms noticeably flailing, but the length traveled while not fully in police control, created a safety concern and possible flight risk that necessitated immediate action. Respondent's takedown of this resisting felony arrestee, which took place as other officers were being assaulted, does not amount to sanctionable misconduct.¹ Accordingly, I find Respondent Not Guilty of the misconduct alleged in Specification 2.

¹ In making this finding, I note that the outcome here could have been different under less dire circumstances. Given the facts of this case, however, the conduct at issue does not amount to a Patrol Guide violation.

Respectfully submitted,

By JJA
/s/ Rosemarie Maldonado

Rosemarie Maldonado
Deputy Commissioner Trials

APPROVED

[Signature]
MAY 23 2023
KECHANT L. SEWELL
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

December 6, 2022

Re: Lt Michael Butler
Disciplinary Case No. 2021-23571

Commissioner Sewell:

The above-referenced case was tried on November 4, 2022, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter “CCRB”), and pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

Respondent, Lieutenant Michael Butler was charged with the following:

1. Lieutenant Michael Butler, on or about May 30, 2020, at approximately 1732 hours, while assigned to CD OFF and on duty, in the vicinity of Bedford Avenue and Tilden Avenue, Kings County, wrongfully used force, in that he pushed an unknown individual without police necessity. PG 221-02, page 2, Prohibition 11 USE OF FORCE
2. Lieutenant Michael Butler, on or about May 30, 2020, at approximately 2030 hours, while assigned to CD OFF and on duty, in the vicinity of Bedford Avenue and Tilden Avenue, Kings County, wrongfully used force, in that he pulled an individual down to the ground without police necessity. PG 221-02, page 2, Prohibition 11 USE OF FORCE

CCRB has reviewed the November 23, 2022, draft decision of Deputy Commissioner - Trials Rosemarie Maldonado (hereinafter, “DCT”). We respectfully submit the following comments regarding the draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

The Court found Respondent Butler not guilty of specifications One (1) and Two (2). It is respectfully requested that you reject DCT Maldonado’s findings, find the Respondent guilty of Specifications One (1) and Two (2) and accept CCRB’s recommended penalty of the forfeiture of Twenty (20) vacation days.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

CCRB introduced into evidence CCRB Exhibit 1, a civilian video capturing a use of force by Lieutenant Butler on a civilian at 1732 hours on May 30, 2020, during protests at Bedford Avenue and Tilden Avenue in Brooklyn; CCRB Exhibit 2, an audio containing radio transmissions from May 30, 2020, including a transmission from a member of service that “this may be my last transmission...”; CCRB 2a, a transcript of CCRB Exhibit 2; CCRB Exhibit 3, an NYPD report detailing the timing of radio transmissions from May 30, 2020; CCRB Exhibit 4, a civilian video capturing a use of force by Lieutenant Butler on a civilian at 2030 hours on May 30, 2020, during protests at Bedford Avenue and Tilden Avenue in Brooklyn; and, CCRB Exhibit 4a, a slowed-down version of CCRB Exhibit 4.

CCRB Exhibit 1 showed Lieutenant Butler and other members of service moving through protestors. It depicted Lieutenant Butler arriving in front of a protestor who has his arm linked with another protestor. Without stopping, Lieutenant Butler pushed the protestor. Another member of service also pushed the protestor, who then fell to the ground (CCRB Exhibit 1).

CCRB Exhibit 2 contains a transmission from a member of service stating that he is surrounded, needs assistance and that “this may be my last transmission...” (CCRB 2, 5:35; CCRB Exhibit 2a, 7). It also contains numerous calls in which it is asked that all available units to go the assistance of this member of service (CCRB Exhibit 2, 6:05-6:54; CCRB Exhibit 2a, 7-8). It also contains numerous calls asking the member of service asking if he is okay (CCRB Exhibit 2, 9:06-12:28; CCRB Exhibit 2a, 10-14). About 9 minutes after the original transmission, a transmission is made that the member of service is safe (CCRB Exhibit 2, 14:37, CCRB Exhibit 2a, 15).

CCRB Exhibit 3 demonstrates that the transmission “this may be my last transmission...” was made at approximately 1732 hours on May 30, 3030 (CCRB Exhibit 3).

CCRB Exhibit 4 and CCRB Exhibit 4a show two officers each holding an arm of a protestor, walking away from Lieutenant Butler. They depict Lieutenant Butler walking up to the protestor and pulling him from behind, causing him to fall back and land on the ground. They show that Lieutenant Butler was not holding on to the protestor as he landed on the ground.

Chief McEvoy testified that he was with Lieutenant Butler on May 30, 2020 (Transcript 33). A transmission came over from a member of service asking for assistance at Bedford Avenue and Tilden Avenue, stating “This may be my last transmission” (Transcript 37, 46). He testified that, as the officers moved through the crowd in response to this call, he observed Lieutenant McEvoy push the protestor (Transcript 44).

Lieutenant Butler testified that he heard the transmission contained in CCRB Exhibit 2 and proceeded to Bedford Avenue and Tilden Avenue to assist the member of service (Transcript 61-62). He testified that the protestor locked arms with other protestors and stated that he was not going to get through, and that he then he pushed the protestor (Transcript 63-66). Lieutenant Butler testified that he had seen the protestor lock arms with the protestor to their left when he arrived in front of them (Transcript 84). He also testified that when he arrived in front of the protestor, he did not stop before pushing him (Transcript 85). He testified that he was not the arresting officer for this civilian and had no more involvement with the protestor once he was removed from the scene (Transcript 89-90). He also testified that he never saw the member of

service who had made the transmission (Transcript 68).

With regards to the protestor upon whom force was used at 2030 hours on May 30, 2020, Lieutenant Butler testified that was being arrested for striking a member of service (Transcript 74). Lieutenant Butler testified that the individual flailed his arms and refused to be handcuffed (Transcript 75). He testified that, as two officers were each holding onto one of the protestor's arms and were walking away (Transcript 93), he walked up to the protestor and pulled the protestor to the ground (Transcript 76). When the protestor hit the ground, Lieutenant Butler was not holding onto him (Transcript 97-98).

RESPONDENT WRONGFULLY USED FORCE WHEN HE PUSHED AN UNKNOWN INDIVIDUAL WITHOUT POLICE NECESSITY

We strongly disagree with the tribunal's finding that Respondent's use of force against the individual at 1732 hours on May 30, 2020, was justified. We disagree with the tribunal's finding that the individual responded to Lieutenant Butler's order by locking arms with other protestors (Draft Decision 5). CCRB Exhibit 1 clearly shows that the first time that the individual is visible in the video, he *already* has his arms locked with the other protestors. (CCRB Exhibit 1, 00:16) At this moment, Lieutenant Butler and his fellow officers were still some distance from the individual. Therefore, the evidence does not support an inference that the individual locked his arms with other protestors *in response to* Lieutenant Butler appearing in front of him. The evidence does show that Lieutenant Butler pushed the individual immediately upon arriving in front of the individual, giving the individual no time to comply with the Lieutenant's orders. Consequently, the force used by Lieutenant Butler was not reasonable.

RESPONDENT WRONGFULLY USED FORCE WHEN HE PULLED AN INDIVIDUAL DOWN TO THE GROUND

We also strongly disagree with the tribunal's finding that Respondent's use of force against the individual at 2030 hours on May 30, 2020, was justified. We disagree with the tribunal's finding that the evidence in this case showed that the individual was flailing his arms and pulling his body away from the officers at the time that Lieutenant Butler used force. (Draft Decision 7). The video clearly shows the individual and the two officers taking at least five steps, with the individual's arms not flailing but being held by the officers, prior to the moment that Lieutenant Butler came up from behind and pulled the individual to the ground (CCRB Exhibit 4, 0:15-0:19). While the individual had undoubtedly resisted arrest in the manner described by Lieutenant Butler, the evidence showed that that resistance had ended by the time Lieutenant Butler used force, with the individual being led away from the scene in the custody of two officers. Consequently, the force used by Lieutenant Butler was not reasonable.

CCRB asks you to carefully review the evidence, which strongly supports a finding of guilt on the charged Specifications. Based on the presented arguments above, Lieutenant Butler

is Guilty of Specification One (1) and Specification (2) and CCRB recommends the presumptive penalty of Ten (10) penalty days on each, for a total of Twenty (20) penalty days.

Respectfully submitted,

Brian Arthur

Brian Arthur, Esq.
APU Prosecutor
NYC Civilian Complaint Review Board

cc: James Moschella, Esq.
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